

HOUSE No. 2232

The Commonwealth of Massachusetts

PRESENTED BY:

Adam J. Scanlon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to require equitable payment from the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>1/6/2025</i>

HOUSE No. 2232

By Representative Scanlon of North Attleborough, a petition (accompanied by bill, House, No. 2232) of Adam J. Scanlon for legislation to provide that network hospitals be compensated for behavioral health services to certain MassHealth patients. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to require equitable payment from the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 16 of chapter 6A, as appearing in the 2008 Official edition of the
2 General Laws, is amended by adding, at the end thereof, the following new paragraph:

3 "And provided further that the secretary of the executive office of health and human
4 services shall ensure that network hospitals are compensated at their full negotiated rate for
5 behavioral health services provided to MassHealth patients who are also clients of agencies
6 within the executive office of health and human services and for whom no appropriate alternative
7 placement is available. Provided however, such compensation shall only be provided if the
8 hospital can document that it has engaged in good faith efforts to place said clients in any
9 appropriate alternative setting."